



Republic of the Philippines
Province of Camarines Norte
MUNICIPALITY OF DAET



OFFICE OF THE SANGGUNIANG BAYAN

EXCERPTS FROM THE MINUTES OF THE 1ST REGULAR SESSION OF THE HONORABLE SANGGUNIANG BAYAN OF DAET HELD AT THE SESSION HALL (LEGISLATIVE HALL) IN BARANGAY PAMORANGON, DAET, CAMARINES NORTE ON THE 4TH DAY OF JANUARY, 2021 AT 9:00 A.M.

PRESENT:

HON. ROSA MIA L. KING
Municipal Vice-Mayor / Presiding Officer

MUNICIPAL COUNCILORS

HON. MA. ELIZA H. LLOVIT
HON. TOMASITO SANTIAGO C. TURINGAN
HON. APOLONIO B. PANONG
HON. FELIX C. ABAÑO
HON. WILLIAM CARLO R. AVILA

HON. ROSSANO C. VALENCIA
HON. NESTOR F. DALIDA
HON. PEDRO S. MUSA – LNB
HON. JUDY ROSE T. GALLARDO – SKMF

ABSENT:

COUN. WILLIAM CARLO R. AVILA - On Official Leave of Absence
COUN. MARLON T. BANDELARIA

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Resolution No. 003-2021

RESOLUTION ADOPTING AN ORDINANCE BANNING ALL ILLEGAL STRUCTURES AND OBSTRUCTION IN ALL PUBLIC ROADS, SIDEWALKS, STREETS, AVENUES, ALLEYS, BRIDGES, PARKS AND OTHER PLACES DEVOTED AS ROAD RIGHT OF WAY IN THE MUNICIPALITY OF DAET, CAMARINES NORTE, REQUIRING AUTHORITIES TO REGULARLY CONDUCT CLEARING OPERATION AND PROVIDING PENALTIES FOR VIOLATION THEREOF

WHEREAS, the Civil Code of the Philippines provides in part, that *"anything which obstructs or interferes with the free passage of any public highways or street is a nuisance, and is subject to abatement, without judicial proceedings"*, and *"any person who obstructs or interferes with the free passage of any public street is liable for damages in addition to having such obstruction summarily abated"*;

WHEREAS, the President's directive enjoins all local officials to exercise their powers essential to reclaim public roads which are being used for private ends and in the process, rid them of illegal structures and constructions;

WHEREAS, by the power vested by the Local Government Code of 1991, the municipal government is empowered to regulate activities relative to the use of land,

buildings and structures within the municipality in order to promote the general welfare and for said purpose shall declare, prevent or abate any nuisance;

WHEREAS, despite existence of national and local laws, the continuous occupation and use by private individuals of sidewalks and other public road right of way for their personal and commercial use which constitute both public nuisances and nuisances per se is becoming perennial problem of this municipality, hence, adoption of ordinance providing stronger guidelines and penalty is needed;

NOW THEREFORE, after due deliberation, on motion of Councilor Felix C. Abaño, with Councilor Apolonio B. Panong as co-movant, seconded by Councilors Judy Rose T. Gallardo, Rossano C. Valencia, Tomasito Santiago C. Turingan, Ma. Eliza H. Llovit, William Carlo R. Avila and Nestor F. Dalida;

BE IT RESOLVED, as it is hereby resolved, to adopt:

MUNICIPAL ORDINANCE NO. 393-2021

AN ORDINANCE BANNING ALL ILLEGAL STRUCTURES AND OBSTRUCTION IN ALL PUBLIC ROADS, SIDEWALKS, STREETS, AVENUES, ALLEYS, BRIDGES, PARKS AND OTHER PLACES DEVOTED AS ROAD RIGHT OF WAY IN THE MUNICIPALITY OF DAET, CAMARINES NORTE, REQUIRING AUTHORITIES TO REGULARLY CONDUCT CLEARING OPERATION AND PROVIDING PENALTIES FOR VIOLATION THEREOF

BE IT ORDAINED by the Honorable Sangguniang Bayan of Daet, that:

SECTION 1. TITLE. This Ordinance shall also be known as "Ordinance on Road Clearing and Banning of Obstruction in all Public Road Right of Way in Daet, Camarines Norte".

SECTION 2. DECLARATION OF POLICY. It is hereby declared policy of the Municipality of Daet to safeguard life, health, property and public welfare, consistent with the principles of environment management and control through regulation in the use and maintenance of public road right of way and clear the same from illegal structures, obstructions and any nuisances in order to facilitate the safe and convenient use thereof.

SECTION 3. DEFINITION OF TERMS. For the purpose of this Ordinance, the following terms shall mean as follows:

- a. Public Road Right of Way – refers to all streets, roads, bridges, highways, sidewalk, avenues or any other thoroughfares constructed by the government including those sidewalks declared for public use.
- b. Nuisance – refers to any obstruction within public road right of way either permanent or temporary such as: structure, vendors, terminals, house or shanty, store, garbage, signages and the likes that may impede the free flowing of traffic. Signages installed for the purpose of regulating the flow of traffic are not included.



SECTION 4. PROHIBITED ACTS. The use of public road right of way within the Municipality of Daet for personal or commercial purposes is hereby prohibited. Such prohibited acts include but not limited to the following:

- a. Installation of permanent or picket fence, permanent or temporary signs or signboards and any other commercial advertisement;
- b. Parking of vehicle more than fifteen (15) minutes with or without driver;
- c. Vending or selling of any products, goods and any other items;
- d. Conduct of services such as: shoe-shine occupation, key duplication services, repairs, and any other commercial services;
- e. Construction of terminals either permanent or temporary such as: pedicab terminal, tricycle loading/unloading station, PUVs terminal, PUBs, or any structure intended as waiting area to convey passenger;
- f. Conduct of religious activities such as: preaching and seeking alms;
- g. Doing activities such as: washing, hanging of clothes, bathing, drinking liquor and beverages, group gatherings, and any other activities that will obstruct the road right of way;
- h. Construction or installation of house or store extension including roofs or awnings, canopies, tables, display stand, shelves, and the likes;
- i. Dumping of garbage and litter;
- j. Using public road right of way as sleeping area or place for street dwellers, pens for animals or keeping of animals on leash, storage for junks and recyclable materials, storage for any products or goods, rice grain or corn drying station;
- k. Construction or installation of plant boxes, except when the design of such road right of way has plant boxes;
- l. Use of public road right of way as vehicle garage or for the conduct of vehicle repair or services; and
- m. Other nuisances that impedes the free flow of traffic.

SECTION 5. EXEMPTIONS. The Municipal Mayor may grant permit for temporary and limited use of public road right of way during any of the following:

- a. Actual emergency;
- b. Fiesta celebrations;
- c. Permitted public rallies;
- d. Agricultural or industrial fairs;
- e. Undertakings of other agencies concerning public utilities such as: electrification, telecommunication and waterworks projects, subject for approval of the Local Chief Executive.



SECTION 6. The use of any public road right of way on a temporary basis for a definite period shall require a special permit from the Municipal Government of Daet.

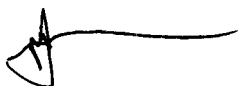
SECTION 7. INTER AGENCY TASK FORCE. The Local Chief Executive through an Executive Order shall organize the Inter-Agency Task Force to clear public road right of way of illegal structures and other nuisance with the following officers/offices/agencies involved:

- a. DILG MGOO
- b. Daet Municipal Police Station
- c. PNP – Highway Patrol Group
- d. Land Transportation Office
- e. Bureau of Fire Protection
- f. Department of Public Works and Highways
- g. Municipal Administrator
- h. Municipal Information Office
- i. Sangguniang Bayan Committee on Peace and Order
- j. Municipal Engineering Office
- k. Office of the Building Official
- l. Public Safety and Traffic Management Unit
- m. Business Permits and Licensing Officer
- n. Municipal Disaster Risk Reduction Management Office
- o. Municipal Environment and Natural Resources Office
- p. Municipal Social Welfare and Development Office
- q. Market Administrator
- r. All Punong Barangays of Daet

SECTION 8. DUTIES AND FUNCTIONS OF INTER-AGENCY TASK FORCE. The Inter-Agency Task Force shall have the following duties and functions:

- a. Conduct inventory of all roads within the Municipality;
- b. Conduct at least once a month road clearing operation in the municipality;
- c. Exercise powers essential to reclaim public roads and rid them of any nuisances;
- d. Rehabilitate all recovered public road right of ways by placing street names and street lights, among others;
- e. Revoke permits to entities occupying public road right of way;
- f. Develop and implement strategies to address the displacement issues caused by the road clearing operation;
- g. Document and report to the concerned office the significant results or accomplishment achieved by the road clearing operation;
- h. Perform such other functions as may be required to sustain the purpose of road clearing operation.

SECTION 9. EXISTING OBSTRUCTION AS NUISANCE PER SE. All obstructions along public road right of way are hereby presumed or declared nuisances per se and, as such are subject to summary abatement without juridical proceedings.



All items, goods and structures found on or along public road right of way shall be confiscated by the municipal government without prior notice. The same shall be treated as common or ordinary garbage; hence, the municipal government reserves the right at its option to dispose it in any manner most convenient and safe. The Inter-Agency Task Force and its authorized personnel shall not be held liable for any damage arising from the removal, confiscation or disposal of the said items.

SECTION 10. DISPLACEMENT PLAN. The LGU Daet IATF shall formulate Displacement Plan for those who are affected by the clearing operation. The displacement action plan should ensure that no affected persons shall be worsened off as a result of clearing operation and that adverse social and physical impacts are avoided, minimized and mitigated. Relocation assistance may be provided subject to recommendation of the Inter-Agency Task Force.

In cases of displacement of informal settlers, the procedure on summary eviction and demolition against professional and squatting syndicates provided under Municipal Ordinance No. 328-2018 of this Municipality shall be observed.

SECTION 11. GRIEVANCE MECHANISM. Any controversy, issue or conflict resulting from the interpretation and implementation of the road clearing project may be extended through Grievance Redress Mechanism of the LGU Daet, through the following:

- a. Hotline
- b. Facebook Page
- c. Suggestion Box
- d. Other mechanism that may be identified.

The Grievance Mechanism shall be established by the Municipal Information Office of the Municipal Government of Daet.

SECTION 12. ROLE OF THE PUNONG BARANGAYS. To ensure the continuity and sustainability of cleanliness of all cleared roads, the Punong Barangay shall have the following roles and responsibilities:

- a. Revisit approved ordinances and make them consistent with existing Municipal Ordinance, and other related laws and policies pertaining to road clearing operations;
- b. Collaborate with the Inter-Agency Task Force through the Office of the Mayor for harmonization of efforts in the clearing of roads of illegal structures and obstructions;
- c. Undertake strategies to ensure a peaceful, smooth, orderly and continuous implementation of the road clearing operation within their respective jurisdiction;
- d. Mobilize the Barangay Tanods to conduct monitoring/ ronda to ensure that the public roads are rid of illegal structures, constructions and nuisance; and
- e. Ensure to maintain and sustain the cleanliness of all cleared roads within their respective jurisdiction.



SECTION 13. PENALTIES. Any person, corporation, trust, firm, partnership, association, or entity found violating this Ordinance, shall be imposed penalty, as follows:

a. Illegal Vendors

First and succeeding offense - confiscation of items.

b. Business Establishments:

First offense	- Written stern warning with order to voluntarily dismantle the nuisance within 24 hours.
Second offense	- Dismantling and confiscation of items and fine of P 2,500.00
Third offense	- Revocation of business permit and closure of establishment for a period of six (6) months.

c. Construction Materials:

First offense	- Written stern warning with order to voluntarily dismantle the nuisance within 24 hours.
Second offense	- Confiscation of nuisance and fine of P 2,500.00
Third offense	- Revocation of permit for a period of six (6) months and fine of P 2,500.00

d. Residential:

First offense	- Written stern warning with order to voluntarily dismantle the nuisance within 24 hours.
Second offense	- Dismantling and Confiscation of nuisance and fine of P 2,500.00

e. Illegal Parking:

First offense	- Stern warning
Second offense	- Clamping of vehicle and confiscation of driver's license which will be turned-over to LTO for proper disposition.

f. For succeeding offences, the guilty person shall be held liable for damages and shall suffer the penalty of imprisonment for six (6) months or a fine of Two Thousand Five Hundred Pesos (P 2,500.00), or both at the discretion of the court.

SECTION 14. FUNDING. The Office of the Mayor shall allocate funding for the implementation of this Ordinance such as but not limited to the following: IATF road clearing operation, formulation of displacement plan, assistance for the affected sector, etc.



SECTION 15. REPEALING CLAUSE. All ordinances, orders, rules and regulations or parts thereof contrary to or inconsistent with any of the provisions of this Ordinance are hereby amended or repealed.

SECTION 16. SEPARABILITY CLAUSE. If any provisions of this Ordinance are held invalid, the other provisions not so declared shall not be affected and will continue to be effective.

SECTION 17. EFFECTIVITY. – This ordinance shall take effect upon its approval and compliance to publication requirement.

ENACTED.

RESOLVED FURTHER, to furnish copies hereof, all others concerned for their information and appropriate action;

CARRIED UNANIMOUSLY.

I HEREBY CERTIFY to the correctness of the foregoing:


MARIA BUENA FE ZABALA-LUARES
Secretary to the Sangguniang Bayan


COUN. FELIX C. ABAÑO
Proponent

ATTESTED:


ROSA MIA L. KING
Municipal Vice-Mayor/ Presiding Officer

APPROVED


BENITO S. OCHOA
Municipal Mayor

Date: JAN 08 2021